

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
ANTHONY JIMENEZ,

Plaintiff(s),

-against-

Plaintiff designates
Bronx County
the place of trial

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER POLICE OFFICER JOSE CORDERO (Badge
No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No:
6583), NEW YORK CITY POLICE OFFICER "JOHN"
PENA and NEW YORK CITY POLICE OFFICER "JOHN"
GOMEZ,

Defendant(s).

The basis of venue is
site of occurrence

SUMMONS

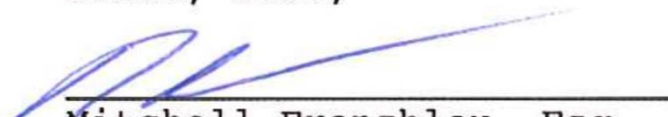
Plaintiff resides at:
2764 Creston Avenue
Bronx, NY 10468

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To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 4, 2019

Yours, etc.,



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

City of New York

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899)

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583)

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER "JOHN" PENNA

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ

100 Church Street

New York, NY 10007

BELOVIN FRANZBLAU & ASSOCIATES, PC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

ANTHONY JIMENEZ,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

Index No:

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER POLICE OFFICER JOSE CORDERO
(Badge No: 14899), NEW YORK CITY POLICE
OFFICER POLICE OFFICER NICOLAS RIOS
(Badge No: 6583), NEW YORK CITY POLICE
OFFICER "JOHN" PENA and NEW YORK CITY
POLICE OFFICER "JOHN" GOMEZ,

Defendant(s).

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Plaintiff, by and through his attorneys, BELOVIN FRANZBLAU &
ASSOCIATES, PC, as and for a verified complaint, respectfully
allege as follows:

1. That all the times hereinafter mentioned, plaintiff was,
and still is, a resident of the City and State of New York, County
of Bronx.

2. At all the times herein, the defendant, CITY OF NEW YORK,
was, and still is a duly licensed Municipal Corporation authorized
to transact business in the City of New York, County of Bronx.

3. Upon information and belief, the defendant, CITY OF NEW
YORK, employed NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE

CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, who were herein duly employed and acting New York City Police Officers (or other ranking officers) of the City of New York, County of Bronx, State of New York and upon information and belief, the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, were and still are, at all times herein mentioned, residents of the City and State of New York.

4. Upon information and belief, that all times herein, the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, were and still are employees of The City of New York Police Department as Police Officers (or other ranking officers), and were at all times herein acting within the furtherance and scope of their employment with THE CITY OF NEW YORK. The defendant, CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE

CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, pursuant to the doctrine of respondeat superior. THE CITY OF NEW YORK expressly and implicitly condoned all of the actions of NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, set forth herein and hereinafter.

5. Upon information and belief, THE CITY OF NEW YORK at all times herein, condoned all of the acts of the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, both as individuals, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of New York, and under the authority of their office as Police Officers for New York City.

7. Upon information and belief, that on or about March 11, 2018 at approximately 1:10 a.m. at the sidewalk located opposite 1357 Boston Road, City and State of New York, County of Bronx, although the plaintiff was lawfully and properly at said location, he was forcibly, violently and unlawfully, stopped, grabbed and violently thrown onto the ground and then handcuffed in a demeaning manner and assaulted and battered in front of the public, threatened and illegally placed under arrest and imprisoned by the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, working for and on behalf of THE CITY OF NEW YORK. During the above incident, the above officers struck plaintiff with night sticks and/or large flashlights.

8. Upon information and belief the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, unlawfully accused the plaintiff, ANTHONY JIMENEZ, of crimes and violations and the defendants became abusive toward the plaintiff without any

justification and said accusations were completely false and plaintiff was unlawfully placed under arrest.

9. Upon information and belief, the plaintiff, **ANTHONY JIMENEZ**, was held, under arrest, and imprisoned from approximately March 11, 2018 at approximately 1:10 a.m. through March 12, 2018 at approximately 5:00 a.m.

10. Upon information and belief, during the time the plaintiff was unlawfully held at the aforesaid location, PSA7 of the New York City Police Department, Lincoln Hospital and Central Booking, plaintiff was otherwise forced to undergo great emotional and mental anguish and physical harm, and loss of liberty and freedom and was kept and imprisoned in handcuffs.

11. Upon information and belief, that on March 12, 2018 at approximately 5:00 a.m., the plaintiff was released and advised that he was free to go.

12. Upon information and belief, all criminal charges pressed against the plaintiff in connection with, or in support of the arrest, search, seizure and imprisonment to which plaintiff was subject as set forth herein will be dismissed.

13. Prior to the commencement of this action, on the 8th day of May, 2018 a Notice of Claim was duly served herein on the defendant and, thereafter, on the 22nd day of May, 2018 an Amended Notice of Claim was duly served herein on the defendant.

Thereafter, regarding the City 50h Hearing, counsel for the defendant entered into a Stipulation allowing for commencement of this action, prior to conducting a 50h Hearing, pending the criminal charges pending against plaintiff. This action is timely brought.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER
JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY
POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ ON BEHALF OF PLAINTIFF, ANTHONY JIMENEZ

14. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "13", above as if fully set forth herein.

15. Upon information and belief, on or about March 11, 2018 at approximately 1:10 a.m. on the sidewalk located opposite 1357 Boston Road, City and State of new York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, approached the plaintiff, detained him and began to assault and batter the plaintiff. This was conducted in a violent and abusive

manner during the course of which defendant probed and handcuffed and verbally and physically and assaulted, battered and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

16. Upon information and belief, after searching plaintiff's person, which search did not reveal any incriminatory or dangerous articles defendant continued to detain plaintiff, in handcuffs, at the above location and thereafter at PSA 7 of the New York City Police Department, Lincoln Hospital and Central Booking, Bronx, New York.

17. Upon information and belief, plaintiff was held at the above locations and imprisoned therein, and detained, from approximately March 11, 2018 at approximately 1:10 a.m. through March 12, 2018 at approximately 5:00 a.m. Said imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper charges and actions of the New York City Police Department and their employees and said actions of defendants were done intentionally and with malice.

18. Upon information and belief, all criminal charges pressed against plaintiff in connection with, or in support of the arrest, search, seizure, and imprisonment to which plaintiff was

subjected as set forth herein will be dismissed and said confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

19. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **ANTHONY JIMENEZ's** movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

20. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **ANTHONY JIMENEZ**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages, against **NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ**, and was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER
JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY
POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ ON BEHALF OF PLAINTIFF, ANTHONY JIMENEZ

21. Plaintiff repeats, reiterates and realleges each and every allegation number "1" through "20" above, as if fully set forth herein.

22. Upon information and belief, on or about March 11, 2018 at approximately 1:10 a.m. on the sidewalk located opposite 1357 Boston Road, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, did falsely arrest the plaintiff.

23. Upon information and belief, at all times herein, the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, did assert proper legal authority to detain and

arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold him against his will.

24. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **ANTHONY JIMENEZ's**, movement was restricted and confined.

25. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

26. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

27. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

28. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **ANTHONY JIMENEZ**, by the defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO** (Badge No: 14899), **NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS** (Badge No: 6583), **NEW YORK CITY POLICE OFFICER "JOHN" PENA** and **NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ**, the plaintiff sustained physical, mental and emotional injuries,

humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER
JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY
POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ ON BEHALF OF PLAINTIFF, ANTHONY JIMENEZ

29. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "28", above as if fully set forth hereinafter.

30. Upon information and belief, the defendant, CITY OF NEW YORK, owed a duty to the general public to sufficiently train and educate their police officers.

31. Upon information and belief, the aforesaid police officers, defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, were

not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, CITY OF NEW YORK, was further negligent in hiring and retaining NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, as employees despite having actual and or constructive notice that said employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

32. Upon information and belief, that THE CITY OF NEW YORK was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, and the defendants were otherwise negligent.

33. That as a direct and proximate result of the defendant, THE CITY OF NEW YORK's negligence, including, but not limited to:

Their failure to properly and adequately train their police officers, and of the negligence of the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

34. By reason of the aforesaid NEGLIGENCE of defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, the plaintiff, ANTHONY JIMENEZ, did suffer shock, mental distress, emotional stress, material loss, emotional damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty, loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF
NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE
CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE
OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE
OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN"
GOMEZ ON BEHALF OF PLAINTIFF, ANTHONY JIMENEZ

35. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "34", above as if fully set forth hereinafter.

36. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

37. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein before and herein after mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting and physically assaulting and battering the plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, and freedom from illegal and unjustified assault and battery, all secured by the Constitution of the United States and 42 United States Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

38. Upon information and belief, the actions and conduct described herein by NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, constituted a continuing pattern of abuse and misconduct by the New York City Police Department, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

39. Upon information and belief, at all times herein, the defendant, CITY OF NEW YORK, condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring amount of 42 USC § 1983 claims

filed against the CITY OF NEW YORK and this official New York City unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations and the above actions by the New York City Police Department Police Officers.

40. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

41. Plaintiffs hereby demand compensation and punitive damages together reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR FIFTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER
JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY
POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ ON BEHALF OF PLAINTIFF, ANTHONY JIMENEZ

42. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "41", above as if fully set forth hereinafter.

43. Upon information and belief, on or about March 11, 2018 at approximately 1:10 a.m. on Opposite 1357 Boston Road, City and

State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, civilly assaulted the plaintiff, ANTHONY JIMENEZ.

44. Upon information and belief, at all times herein, the defendant, CITY OF NEW YORK, and the defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, placed the plaintiff, ANTHONY JIMENEZ, in imminent fear of violent contact.

45. Upon information and belief, the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, acts were intentional and made with malice all against the plaintiff, ANTHONY JIMENEZ.

46. Upon information and belief, at all times herein, the plaintiff was aware of the defendants' actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

47. Upon information and belief, by reason of **CIVIL ASSAULT** of the plaintiff, **ANTHONY JIMENEZ**, by the aforesaid defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, ANTHONY JIMENEZ**, sustained personal injury, physical, mental and emotional injuries and plaintiff demands punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts and demands punitive damages against **NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ.**

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER
JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY
POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ ON BEHALF OF PLAINTIFF, ANTHONY JIMENEZ**

48. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "47", above as if fully set forth hereinafter.

49. Upon information and belief, on or about March 11, 2018 at approximately 1:10 a.m. opposite 1357 Boston Road, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, civilly battered the plaintiff, ANTHONY JIMENEZ, including, but not limited to, violently grabbing plaintiff and throwing him onto the ground and physically striking plaintiff with nightsticks and/or flashlights and did place handcuffs on excessively tight for an unreasonable and extensive amount of time.

50. That at the aforesaid time and place the defendant, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, did batter the plaintiff by subjecting the plaintiff, ANTHONY JIMENEZ,

to offensive bodily conduct and conducting an improper, unnecessary and illegal and search of plaintiff.

51. Upon information and belief, the plaintiff, **ANTHONY JIMENEZ**, never consented to said contact, nor was said contact justified or privileged.

52. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

53. Upon information and belief, by reason of the **CIVIL BATTERY** of the plaintiff, **ANTHONY JIMENEZ**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO** (Badge No: 14899), **NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS** (Badge No: 6583), **NEW YORK CITY POLICE OFFICER "JOHN" PENA** and **NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ**, the plaintiff, **ANTHONY JIMENEZ**, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against **NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO** (Badge No: 14899), **NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS** (Badge No: 6583),

NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ.

WHEREFORE, plaintiff demands judgment against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action, plus punitive damages against defendants, NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, in the amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
March 4, 2019

Yours, etc.



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
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(718) 655-2900

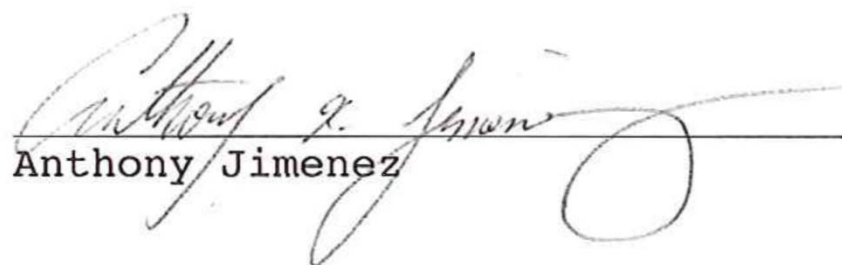
VERIFICATION

State of New York)

SS:

County of Bronx)

Anthony Jimenez, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


Anthony Jimenez

Sworn to before me on
March 4, 2019


Notary Public

LAURA PANISSIDI
Notary Public, State of New York
No. 01PA5017882
Qualified in BRONX County
Commission Expires September 13, 2021

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

=====

ANTHONY JIMENEZ,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER POLICE OFFICER
JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER
POLICE OFFICER NICOLAS RIOS (Badge No: 6583), NEW YORK CITY
POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin Franzblau & Associates, PC
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, NY 10467
718-655-2900

TO: